

AGREEMENT FOR USE OF MOBILE DEVICE / EQUIPMENT

Memorandum of Agreement entered into between:

STEVE TSHWETE LOCAL MUNICIPALITY

herein represented by **STANLEY MANDLA MNGUNI** in his capacity as **MUNICIPAL MANAGER** or **PRUDENCE MAGUTLE** in his capacity as **ACTING EXECUTIVE DIRECTOR: CORPORATE SERVICES** or **THABO MOKOENA** in his capacity as **ACTING DIRECTOR: LEGAL AND ADMINISTRATION** duly authorised by resolutions **C47/01/2014** and **C69/01/2017** of Steve Tshwete Local Municipality dated **30 JANUARY 2014** and **24 JANUARY 2017**

(hereinafter referred to as the "OWNER")

and

Full names & Surname:

ID no.: _____

Personnel no.: _____
(hereinafter referred to as the "BORROWER")

WHEREAS the BORROWER requires the use of a (*select all that apply*)

LAPTOP		MOBILE ROUTER		SIM CARD		TABLET/ MOBILE TELEPHONE (SMART DEVICE)	
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for the purpose of performing Council's duties / duties as prescribed by the OWNER,

AND WHEREAS the OWNER has agreed to avail the MOBILE DEVICE(S) to the BORROWER for such purpose;

NOW THEREFORE the parties agree as follows:

1. SUBJECT

The OWNER agrees to avail to the BORROWER mobile device(s) described as follow(s):

LAPTOP		TABLET / MOBILE TELEPHONE (SMART DEVICE)	
Brand		Brand	
Model		Model	
Power adaptor	Yes/No	Power adaptor	Yes/No
Carry bag	Yes/No	External Keyboard	Yes/No
Serial number		Screen Protector	Yes/No
Asset number		Carry Bag	Yes/No
Condition	New/Excellent/Good/Fair	Serial number	
		Asset number	
		Condition	New/Excellent/Good/Fair
MOBILE ROUTER		SIM CARD	
Brand		Mobile Provider	
Model		Type	Standard/Micro/Nano
Power Adaptor	Yes/No	PUK	
IMEA		Serial Number	
Serial Number			

(Hereinafter collectively referred to as “MOBILE DEVICE(S)”)

2. DELIVERY OF MOBILE DEVICE(S)

The BORROWER undertakes to take delivery of the MOBILE DEVICE(S) at the OWNER’s *domicilium citandi et executandi* as stated in Clause 8 on _____ 20____.

3. USE OF MOBILE DEVICE(S)

The BORROWER agrees not to use the MOBILE DEVICE(S) for any

purpose other than for the performance of Council duties or in violation or contravention of any of the provisions of OWNER'S ICT Security Policy and other related policies.

4. DURATION OF AGREEMENT

4.1 This agreement shall come into effect on 20 and shall terminate on the date the BORROWER'S term of the office or employment with the OWNER has expired / terminated and under the events stated in Clause 4.2

4.2 This contract shall terminate and the MOBILE DEVICE(S) shall be returned to the OWNER within 7(seven) days in the event of:

- (a) Death or resignation of the **BORROWER**;
- (b) The **BORROWER** being sequestered or placed under liquidation, either provisionally or finally, whether voluntary or compulsory;
- (c) The **BORROWER** committing breach of any of the provisions of this agreement.
- (d) The **BORROWER** is guilty of any other conduct that will justify summary dismissal and/or suspension in terms of the laws of the Republic of South Africa.
- (e) Any reason/s that is/are justifiable in terms of the laws of the Republic of South Africa.

5. RIGHTS AND DUTIES OF THE OWNER

5.1 The OWNER undertakes to deliver the MOBILE DEVICE(S) to the BORROWER and not to interfere with its lawful use by the BORROWER during the period of the agreement.

5.2 The OWNER confirms that it is not aware of any major defect in the MOBILE DEVICE(S) which is likely to cause any damage to the BORROWER.

5.3 The OWNER will be entitled and reserves the right to, without prior notice to the BORROWER, disable or disconnect any services or application running and/or installed on the MOBILE DEVICE(S).

5.4 The OWNER will offer fixed data and/or or minutes ('airtime') at a reasonable monthly quantity that is at the sole discretion of the OWNER and through a carrier of its sole choice. The OWNER will have the right to change such carrier or quantity of data / minutes at any time.

- 5.5 The OWNER will not be liable to render any assistance to the BORROWER that fall outside the scope of services that come standard with the MOBILE DEVICE(S).
- 5.6 The OWNER will not be responsible for any carrier network or – system outage resulting in failure to connect to the OWNER's network or application installed on the MOBILE DEVICE(S).

6. DUTIES OF THE BORROWER

- 6.1 The BORROWER undertakes to:
 - 6.1.1 Maintain the MOBILE DEVICE(S) in good working order and to keep the MOBILE DEVICE(S) in a safe place in order to protect the MOBILE DEVICE(S) against damage, loss, theft and weather conditions.
 - 6.1.2 Use the MOBILE DEVICE(S) with care and subject to any instructions issued by the supplier or manufacturer of the MOBILE DEVICE(S) from time to time, which instructions shall be deemed to have been issued by the OWNER.
 - 6.1.3 Keep the MOBILE DEVICE(S) dry, clean and free from dust, extreme temperature and harmful fumes.
 - 6.1.4 Not use the MOBILE DEVICE(S) in contravention of this agreement, the OWNER'S ICT Security Policy and other related policies or for social media purposes.
 - 6.1.4 Not, without the prior written consent of the OWNER, make any alterations to the MOBILE DEVICE(S).
 - 6.1.5 Only allow a competent and qualified person to operate the MOBILE DEVICE(S), should the BORROWER not operate the MOBILE DEVICE(S) himself/herself.
 - 6.1.6 Consistently connect to the required workforce management application as directed by the OWNER.
 - 6.1.7 Top-up the data and/or minutes provided at the cost of the OWNER in case of abuse or misuse thereof by the BORROWER.
- 6.2 The BORROWER must exercise reasonable supervision over the use of the MOBILE DEVICE(S) at all times.
- 6.3 As per Council's Asset Management Policy, The BORROWER undertakes to report loss/theft of the MOBILE DEVICE(S) to the nearest SAPS within 24 hours of him/her being aware of such loss/theft and to advise the OWNER within 48 hours forthwith of

any loss of or damage to the MOBILE DEVICE(S).

- 6.4 The OWNER'S ICT Services will investigate any reported loss/theft/damage of MOBILE DEVICE(S). Should The BORROWER be found to have been negligent, the BORROWER shall pay for the cost, repair or replacement of the MOBILE DEVICE(S).
- 6.5 The BORROWER shall not, without the prior written permission of the OWNER cede and/or assign any of his/her rights and/or delegate any of his/her obligation in and to and arising from this agreement.
- 6.6 The BORROWER shall keep the MOBILE DEVICE(S) free from the claim of third parties and from attachment, shall not alienate or transfer the MOBILE DEVICE(S), encumber the MOBILE DEVICE(S), either in part or as a whole, nor allow any lien to arise in respect thereof.

7. BREACH

If the BORROWER commits a breach of the terms of this agreement, the OWNER shall be entitled to give seven (7) days written notice to the BORROWER to comply with the terms of the agreement, failing which the OWNER will be entitled to cancel the agreement, to retake possession of the MOBILE DEVICE(S) and to claim damages for any loss which the OWNER may suffer as a result of such breach.

8. DOMICILIUM CITANDI ET EXECUTANDI

For the purposes of this agreement and all actions arising there from, the parties accept the following addresses as their respective *domicilium citandi et executandi*:

The OWNER: Corner Wanderers Avenue and Walter Sisulu Street, Middelburg, 1050.

The BORROWER: _____

(physical address to be provided)

9. INSPECTION

The OWNER, through its authorised officials, reserves the right to inspect

the MOBILE DEVICE(S) at any reasonable time. The BORROWER shall ensure that the MOBILE DEVICE(S) is/are returned to the OWNER, at its *domicilium* address, at least quarterly for the purpose of loading the necessary antivirus programmes.

10. LIABILITY OF THE BORROWER AND INDEMNITY

- 10.1 Subject to the provisions of this agreement, the BORROWER shall not during the period of this agreement or after the expiry thereof be liable for or guarantee any amount in respect of the value of the MOBILE DEVICE(S), but shall not be entitled to cancel this agreement as a result of any diminution in the value of the MOBILE DEVICE(S) howsoever caused.
- 10.2 The BORROWER shall during the subsistence of this agreement maintain the MOBILE DEVICE(S) in a good state of repair, fair wear and tear excepted. The BORROWER shall make good at his or her own expense any damage caused to the MOBILE DEVICE(S) arising from the negligence of the BORROWER or any person using the MOBILE DEVICE(S) on behalf of the BORROWER. Only the OWNER shall ensure that all the repair and maintenance services in respect of the MOBILE DEVICE(S) shall be rendered only by suitably qualified persons approved by the supplier of the MOBILE DEVICE(S). The BORROWER shall be responsible for all costs and charges in respect of repairs of the MOBILE DEVICE(S).
- 10.3 No guarantees, warranties, representations, undertakings or promises of whatsoever nature (including warranties as to the fitness or otherwise of the MOBILE DEVICE(S) or the condition thereof) other than those expressly contained herein shall be of any force and effect or binding as against the OWNER.
- 10.4 The BORROWER acknowledges having examined the MOBILE DEVICE(S) or caused the MOBILE DEVICE(S) to be examined and satisfied himself/herself as to its good condition and serviceability and agrees that no warranty as to the condition, quality or model of the MOBILE DEVICE(S) as to its fitness for any purpose has been given expressly or tacitly, and any implied warranty is hereby expressly excluded.
- 10.5 The BORROWER hereby indemnifies the OWNER against any liability, loss, damages (including, but not limited to, any loss of data or functionality of the MOBILE DEVICE(S)) which may arise through any outage or crash of the OWNER's network, programming, errors, bugs, viruses, any software- or hardware failures or any carrier network or system outage.

11. GEOTECHNOLOGY AND PROTECTION OF PERSONAL INFORMATION

- 11.1 In order to recover lost or stolen MOBILE DEVICE(S) and/or to prevent confidential information and data being compromised, the OWNER may, at its sole discretion, enable geolocation in the MOBILE DEVICE(S) for purposes of locating and/or wiping or freezing the MOBILE DEVICE(S). The BORROWER hereby confirms his/her knowledge that such enabling of geolocation in the MOBILE DEVICE(S) may also determine the physical location of the BORROWER and hereby expressly consents to the enabling thereof.
- 11.2 The Parties acknowledge and agree that all or some of the material and/or information of the 1st Party which has or will come into the 2nd Party possession or knowledge in connection with this Agreement, or the performance hereof, consists of Personal Information as defined in the Protection of Personal Information Act 4 of 2013.
- 11.3 The Parties, therefore, agree to hold Personal Information in strictest confidence, not to make use thereof other than for the performance of this Agreement or protection against loss or compromise of the MOBILE DEVICE(S), data or confidential information, to release it only to its directors, or employees reasonably requiring such information who are bound by written confidentiality obligations no less stringent than those contained in this Agreement prior to such release, and not to release or disclose it to any other party, unless so required by Law.
- 11.4 The Parties hereby warrant that they will at all times strictly comply with all applicable legislation and with all the provisions and requirements of any Municipal data protection policies and procedures which may be in force from time to time.
- 11.5 The Parties hereby warrant and undertake that they will not, at any time, copy, compile, collect, collate, process, mine, store, transfer, alter, delete, interfere with or in any other manner use any Personal Information for any purpose other than to the extent necessary to perform its obligations as set out herein and/or to protect against loss or compromise of the MOBILE DEVICE(S), data or confidential information, unless with the express prior written consent of the relevant Party.
- 11.6 The Parties further warrant that it will ensure that all its systems and operations which it uses to perform its obligations, including all systems on which any Personal Information is copied, compiled, collated, processed, transmitted, stored, collected, mined, altered or deleted or otherwise used, will at all times be of a minimum standard required by law.

- 11.7 The Parties undertake to inform the other Party immediately if any Personal Information has been compromised.

12. INSURANCE

In the instance where the MOBILE DEVICE(S) is/are insured by the OWNER, the BORROWER shall comply with all reasonable conditions imposed by the OWNER's insurer or their agents with regard to the location and use of the MOBILE DEVICE(S).

13. RETURN UPON TERMINATION

Upon termination of this agreement for whatever reason, the DEVICE/S must be returned by the BORROWER to the OWNER at the OWNER'S ICT Services Department. The DEVICE/S must be returned in the same condition in which it was received, ordinary wear and tear occasioned by the use of the DEVICE/S for the purpose for which it was lent expected. Failure to return the DEVICE/S in the same condition as mentioned hereinbefore, will result in the BORROWER being responsible for the reasonable repair and/or replacement cost thereof.

14. GENERAL

- 13.1 This agreement must be read with all the OWNER'S ICT Services policies.
- 13.2 The parties confirm that this agreement contains the full terms of their agreement and that no addition to or variation of the agreement shall be of any force and effect unless done in writing and signed by both parties.
- 13.3 The failure of either Party to insist upon the strict performance of any provision of this Agreement or to exercise any right, power or remedy in the event of a breach of this Agreement, will not be a waiver by such Party to require strict and punctual compliance with every provision of this Agreement.
- 13.4 If any clause or term of this Agreement should be invalid, unenforceable, defective or illegal for any reason whatsoever, then the remaining terms and provisions of this Agreement will be deemed to be severable from such clause and will continue in full force and effect unless such invalidity, unenforceability, defect or illegality goes to the root of this Agreement.

SIGNED at MIDDELBURG on this _____ day of _____ 20____.

Witnesses:

1 _____

2 _____

(Signatures of Witnesses)

(Signature of **OWNER**)

SIGNED at MIDEELBURG on this _____ day of _____ 20____.

Witnesses:

1 _____

2 _____

(Signatures of Witnesses)

(Signature of **BORROWER**)

Date returned: _____ **Condition:** _____

Signature: _____